

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JULIO RIVAS,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER KENNETH CONNOLLY (shield # 24042),
POLICE OFFICER ISAAH DEODAT (shield # 10473),

Defendants.

Index No.

Purchased 11-6-24

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
November 6, 2024



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10016
(212) 939-7251

Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
JULIO RIVAS

Plaintiff,

Index No.
Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER KENNETH CONNOLLY (shield # 24042),
POLICE OFFICER ISAIAH DEODAT (shield # 10473),

Defendants.

-----X

Plaintiff JULIO RIVAS, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by
ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and
alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff JULIO RIVAS was a resident of Bronx County, State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY") was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendants POLICE OFFICER KENNETH CONNOLLY (shield # 24042)("P.O. CONNOLLY") and POLICE OFFICER ISAIAH DEODAT (shield # 10473)("P.O. DEODAT") were and are police officers employed by the

Defendants.

BACKGROUND

5. On February 1, 2023, at approximately 11:00 a.m., in the vicinity of Sedgwick Avenue and West 183rd Street in Bronx County, Plaintiff was operating a motor vehicle. Although Plaintiff had not committed a traffic infraction, members of the NYPD pulled behind Plaintiff's vehicle and directed Plaintiff to "stop" his vehicle. As a result, Plaintiff stopped his vehicle.

6. Next, P.O. CONNOLLY and P.O. DEODAT approached Plaintiff and asked for Plaintiff's license and registration. Plaintiff provided said documents.

7. Shortly thereafter, P.O. DEODAT handed Plaintiff traffic tickets. Plaintiff took the tickets and placed them on the passenger seat of his vehicle.

8. As Plaintiff began to drive away, Plaintiff noticed that after driving a mere foot, P.O. DEODAT pretended that Plaintiff's vehicle struck P.O. DEODAT. At no time did Plaintiff's vehicle strike P.O. DEODAT or otherwise cause injury to P.O. DEODAT.

9. After realizing that P.O. DEODAT was pretending that he was hit by Plaintiff's vehicle, Plaintiff parked and exited his vehicle.

10. At that moment, without just cause or provocation, P.O. CONNOLLY grabbed Plaintiff and handcuffed Plaintiff.

11. Plaintiff was taken to a police precinct where he was searched and forced to remain inside of a holding cell.

12. Thereafter, Plaintiff was taken to Bronx County Central Booking.

13. On February 2, 2023, a criminal action against Plaintiff commenced. Plaintiff was charged with Assault in the Second Degree and related charges.

14. Plaintiff was released on or about February 2, 2023.

15. Plaintiff had to defend against false charges until all charges were dismissed and sealed on August 30, 2023.

PROCEDURAL POSTURE

16. Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY on September 11, 2023, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendants of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

17. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust this claim.

18. This action has been timely commenced.

19. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

AS AND FOR A FIRST CAUSE OF ACTION FOR MALICIOUS PROSECUTION

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.

21. In arresting Plaintiff, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

22. The Defendants, including P.O. CONNOLLY and P.O. DEODAT, generated police paperwork that contained falsehoods and inaccuracies—including the false claim that Plaintiff struck and injured P.O. DEODAT with Plaintiff's vehicle.

23. Upon information and belief, P.O. CONNOLLY and P.O. DEODAT provided the Bronx County District Attorney's Office with knowingly false information—including, but not limited

to, the false claim that Plaintiff engaged in assaultive behavior and the false claim that P.O.

DEODAT sustained physical injuries as a result of Plaintiff's alleged conduct.

24. The criminal case commenced on or about February 2, 2023. All charges pending against Plaintiff were dismissed and sealed on August 30, 2023.

25. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE ARREST AS AGAINST
ALL DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES
CONSTITUTIONAL RIGHTS (SECTION 1983)**

26. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

27. Plaintiff sues all Defendants in their capacities.

28. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, imprisonment and prosecution were all carried out without a warrant or probable cause.

29. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

30. Prior to February 1, 2023, CITY and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of CITY to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees including the Defendant officers, thereby failing to adequately discourage further constitutional

violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The Defendants' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

31. It was the policy and/or custom of the NYPD and CITY to ignore exculpatory evidence before, during and after an arrest is made.

32. It was the policy and/or custom of the NYPD for its officers to allege that they were assaulted despite not sustaining a "physical injury".

33. The CITY knew of the improper, unconstitutional and/or illegal police practices of P.O. DEODAT prior to February 1, 2023, yet continued to employ and promote P.O. DEODAT without any discipline and/or retraining and placed him in a position of command where other officers would follow his lead to the detriment of civilian's rights.

34. This practice of retention of "bad" officers was not unique to P.O. DEODAT, and was a practice adopted by CITY and/or NYPD and/or treated with deliberate indifference.

35. In a New York Times article published November 15, 2020 titled A Watchdog Accused Officers of Serious Misconduct: Few were Punished, by Ashley Southwell, Ali Watkins and Blacki Miglozzi, it reported that of the 6900 misconduct charges where the highest level of discipline was recommended, the NYPD ignored 71% of the recommendations and routinely downgraded the charges.

36. The Times article found that after reviewing charges brought against 3,188 officers, the Police Department followed the Review Board's recommendations less than 20% of the time.

37. It is in this atmosphere, which was created, permitted or acted upon with deliberate indifference by CITY, which allowed the constitutional violations of Plaintiff to occur and permitted Defendant officers to act with impunity.

38. As a result of being falsely arrested and imprisoned by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

39. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS (SECTION 1983)**

40. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

41. In arresting Plaintiff, the Defendants acted with malice.

42. The Defendants lacked probable cause to arrest Plaintiff.

43. P.O. CONNOLLY and P.O. DEODAT completed police paperwork related to this incident and said paperwork contained falsehoods and inaccuracies—including but not limited to the claim that Plaintiff's vehicle struck P.O. DEODAT.

44. The matter commenced and was thereafter terminated in Plaintiff's favor when all charges were dismissed and sealed on August 30, 2023.

45. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

46. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the

jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR ASSAULT IN VIOLATION OF
PLAINTIFF'S CONSTITUTIONAL RIGHTS (SECTION 1983)**

47. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth herein.

48. Defendants, including P.O. CONNOLLY and P.O. DEODAT, caused Plaintiff to apprehend and/or fear unfriendly contact by approaching Plaintiff and violently handcuffing Plaintiff.

49. A reasonable person in the same circumstances as Plaintiff would have apprehended and/or feared unfriendly contact.

50. P.O. CONNOLLY and P.O. DEODAT assaulted Plaintiff in violation of Plaintiff's civil rights.

51. Due to the Defendants' assault on Plaintiff, Plaintiff is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A FIFTH CAUSE OF ACTION FOR EGREGIOUS CONDUCT

52. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

53. The acts of the Defendants, including P.O. DEODAT, complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

54. Plaintiff was caused to sustain loss of liberty, shock, mental anguish, embarrassment, humiliation and anxiety.

55. As a result of the foregoing, Plaintiff seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR FAILURE
TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

56. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

57. As a result of the above actions, Defendant CITY, individually and/or vicariously, by and through its agents, servants and /or employees, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff by Defendants P.O. CONNOLLY and P.O. DEODAT.

58. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through their agents, servants, and/or employees, including P.O. CONNOLLY and P.O. DEODAT, displayed a deliberate indifference to Plaintiff's right to be free from unreasonable searches and seizures and excessive use of force.

59. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through its agents servants, and/or employees, including P.O. CONNOLLY and P.O. DEODAT, acted intentionally, willfully, maliciously and with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well-being.

60. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

61. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein

62. The Defendants acted outrageously for their above-stated roles in the wrongful stop, detainment, assault, battery, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff's protestations, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

63. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to Plaintiff.

64. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff and injury to his good name and reputation.

65. Said harm did in fact occur in this case, in that Plaintiff was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health.

66. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS**

67. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

68. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff's well-being, and were based on a lack of concern and ill-will towards Plaintiff.

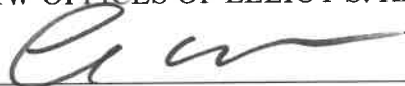
69. Plaintiff therefore demands punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
November 6, 2024

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.
Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10016
212-939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JULIO RIVAS,

Plaintiff

-against-

THE CITY OF NEW YORK,
POLICE OFFICER KENNETH CONNOLLY (shield # 24042),
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Defendants
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Index No.

Purchased: 11-6-24

VERIFICATION

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
November 6, 2024



ELLIOT S. KAY